

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
NAGITY DENG,

Plaintiff,

Index #

-against-

THE CITY OF NEW YORK; THE NEW YORK
CITY POLICE DEPARTMENT;
DETECTIVE MARTINEZ, 41st PRECINCT;
LT. GALLAGHER, NYPD LEGAL BUREAU;
HYDE LEADERSHIP CHARTER SCHOOL;
LEX ZAIN, PRINCIPAL, HYDE LEADERSHIP
CHARTER SCHOOL; JAMAYLA SCOTT,
DEAN OF STUDENTS, HYDE LEADERSHIP
CHARTER SCHOOL;

SUMMONS

Plaintiff designates Bronx
County as the place of trial.
The basis of venue is the
action arose in Bronx County.

Defendants.

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs attorney within 20 days after the service of the summons, exclusive of the day of service or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within Verified Complaint.

Dated: July 9, 2019
New York, New York

Yours, etc.,

Brill Legal Group, P.C.



By: Peter E. Brill, Esq.
Attorneys for Plaintiff
306 Fifth Avenue
Penthouse
New York, NY 10001
(212) 233-4141

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CHARTER SCHOOL; JAMAYLA SCOTT,
DEAN OF STUDENTS, HYDE LEADERSHIP
CHARTER SCHOOL;

VERIFIED COMPLAINT

Defendants.

-----X

Plaintiff, by his attorney, **PETER E. BRILL, ESQ.**, complaining of the
defendants, respectfully shows to this Court and alleges the following upon information
and belief:

1. That at all times the Plaintiff **NAGITY DENG** was and is a resident of
County of the Bronx, City and State of New York.
2. That at all times hereinafter mentioned, the defendant, CITY OF NEW
YORK, hereinafter referred to as "CITY", was and still is a municipal corporation
organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned the defendant, NEW YORK CITY
POLICE DEPARTMENT, hereinafter referred to as "NYPD", was and is an agency of
the defendant, CITY.

4. That at all times hereinafter mentioned the defendant, DETECTIVE MARTINEZ, hereinafter referred to as “MARTINEZ”, was and is a Detective employed by the defendant NYPD, assigned to the 41st Precinct, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

5. That at all times hereinafter mentioned the defendant, LIEUTENANT GALLAGHER, hereinafter referred to as “GALLAGHER” was and is a Lieutenant employed by the defendant NYPD, assigned to the NYPD Legal Bureau, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

6. That at all times hereinafter mentioned the defendant, HYDE LEADERSHIP CHARTER SCHOOL, hereinafter referred to as “HYDE”, was and is a public charter school organized and operating under the laws of the State of New York.

7. That at all times hereinafter mentioned the defendant, LEX ZAIN, hereinafter referred to as “ZAIN” was the Principal employed by the defendant HYDE, and at all times herein was acting in such capacity as the agent, servant and employee of HYDE.

8. That at all times hereinafter mentioned the defendant, JAMAYLA SCOTT, hereinafter referred to as “SCOTT” was the Dean of Students employed by the defendant HYDE, and at all times herein was acting in such capacity as the agent, servant and employee of HYDE.

9. Upon information and belief, at all times hereinafter mentioned, and on April 10, 2018, MARTINEZ was on duty at the 41st Precinct in the Bronx and GALLAGHER was at work at the NYPD Legal Bureau in Manhattan.

10. Upon information and belief, at all times hereinafter mentioned, and on April 10, 2018, ZAIN and SCOTT were at work at HYDE.

11. Upon information and belief, at all times hereinafter mentioned, and on April 10, 2018, the above-mentioned defendants were acting within the scope of their employment and under the direction of the CITY and NYPD or HYDE, respectively, as its agents, servants and/or employees.

12. That on and prior to April 10, 2018, MARTINEZ and GALLAGHER were each individually hired, screened, tested, interviewed, trained, retrained, investigated, monitored and supervised by the CITY and NYPD.

13. That on and prior to April 10, 2018, ZAIN and SCOTT were each individually hired, screened, tested, interviewed, trained, retrained, investigated, monitored and supervised by HYDE.

14. That on and prior to April 10, 2018, MARTINEZ and GALLAGHER were each individually and/or collectively acting pursuant to and under the rules and regulations of the NYPD Patrol Guide.

15. That on and prior to April 10, 2018, ZAIN and SCOTT were each individually and/or collectively acting pursuant to and under the rules and regulations of HYDE.

16. That on or about March 22, 2018, Plaintiff, NAGITY DENG, a teacher, duly licensed and certified in biology from seventh through twelfth grade, was employed by HYDE as a teacher.

17. On or about March 22, 2018, employee(s) of HYDE, including ZAIN and SCOTT, reported to the NYPD that Ms. Deng sent a text message to a member of the school staff with whom she believed she was friends, "If I Get Fired on Friday, I Want To Make Sure That Whole Building Burns."

18. The investigation was subsequently assigned to MARTINEZ of the 41st Precinct PDU.

19. Upon information and belief, ZAIN and/or SCOTT conferred with MARTINEZ and confirmed that they believed DENG had made a threat against HYDE.

20. Upon information and belief, ZAIN and/or SCOTT asked MARTINEZ to pursue an arrest of DENG.

21. MARTINEZ conferred with GALLAGHER of the NYPD Legal Bureau, who authorized the arrest of Ms. Deng for Aggravated Harassment.

22. At that time, MARTINEZ also stated his intention to arrest DENG for Criminal Anarchy.

23. On April 10, 2018, DENG voluntarily appeared at the 41st Precinct. MARTINEZ arrested DENG for Aggravated Harassment and Falsely Reporting an Incident.

24. MARTINEZ and GALLAGHER knew, or should have known, that DENG's arrest was illegal. In 2014, the Court of Appeals held the Aggravated Harassment statute to be unconstitutional. Here, the NYPD drafted a complaint using both the current statutory language and the pre-2014 unconstitutional statutory language. This is not merely a technical error. The Aggravated Harassment statutes have been strictly construed to reach only conduct intended to threaten or harass, such as threats which are unequivocal and specific; and communications which are directed to an unwilling recipient under circumstances wherein "substantial privacy interests are being invaded in an essentially intolerable manner." There was no immediate threat made by Ms. Deng—even if she had said what was alleged, it would not have been a crime. As such, her arrest was illegal, invalid, and unconstitutional.

25. After the arrest, DENG was fingerprinted, photographed, physically searched and detained at the 41st Precinct. She was then handcuffed, transported and detained in Bronx Central

Booking.

26. DENG spent approximately 14 hours in custody before the Bronx District Attorney's Office Declined to Prosecute her.

27. Within ninety (90) days after the causes of action accrued herein, and more than thirty (30) days prior to the commencement of this action, DENG caused a notice of claim, in writing, sworn to by and on behalf of the claimant, the Plaintiff herein, containing the statement of the name and place of residence of the claimants by the street and number and their attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon defendants CITY and HYDE, their agents, servants and/or employees.

28. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this action, defendants CITY and HYDE neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted.

29. That the defendants requested oral examinations pursuant to General Municipal Law Section 50-H and said requests were complied with.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
PLAINTIFF NAGITY DENG

30. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-29 with the same force and effect as if fully set forth at length herein.

31. That on or about April 10, 2018, GALLAGHER authorized the arrest of Plaintiff DENG, knowing her arrest would be unlawful, invalid and unconstitutional.

32. That on or about April 10, 2018, Plaintiff was without just cause, probable cause or provocation, and with reckless, negligent and callous disregard for the truth, touched, grabbed, handcuffed, seized and arrested by CITY, NYPD, and MARTINEZ, and/or their agents, servants and/or employees.

33. That on or about April 10, 2018, Plaintiff was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by HYDE, ZAIN, SCOTT, CITY, NYPD, GALLAGHER and MARTINEZ of having committed a crime.

34. That on or about April 10, 2018, and upon arresting Plaintiff and depriving her of her liberty, CITY, NYPD, and MARTINEZ entered her on the NYPD records as under arrest.

35. That on or about April 10, 2018, CITY, NYPD and MARTINEZ caused Plaintiff to have her fingerprints and photographs to be taken without her consent and in accordance with police procedures for the arrest of criminals and held her on various criminal charges at various police stations, correctional facilities and at the Courthouse located at 215 East 161st Street, County of Bronx, City and State of New York.

36. That on or about April 10, 2018, Plaintiff was aware of her arrest and confinement, and did not consent to her arrest or confinement. Said confinement, seizure, arrest and detention was without legal justification.

37. That at all times hereinafter mentioned the actions of HYDE, ZAIN, SCOTT, CITY, NYPD, and MARTINEZ as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

38. That by reason of the foregoing, Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
PLAINTIFF NAGITY DENG

39. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 to 38 with the same force and effect as if fully set forth at length herein.

40. That on or about April 10, 2018, MARTINEZ conferred with one or more Assistant District Attorneys employed by the Bronx District Attorney.

41. MARTINEZ attempted to file a criminal complaint based upon GALLAGHER's illegal order and without probable cause, reasonable cause or legal justification. Said complaint was filed based on fraud, perjury and/or misrepresentations by HYDE, SCOTT, ZAIN and/or GALLAGHER.

42. That solely as a result of the aforesaid, Plaintiff's life was interfered with.

43. That solely as a result of the false arrest, false imprisonment and malicious prosecution of Plaintiff, she was deprived of her liberty for an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

44. As a result of the Bronx District Attorney's decision to decline to prosecute, the criminal action against Plaintiff was terminated favorably.

45. That at all times hereinafter mentioned the actions of HYDE, ZAIN, SCOTT, CITY, NYPD, and MARTINEZ as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

46. That by reason of the foregoing, Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
PLAINTIFF NAGITY DENG

47. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 to 46 with the same force and effect as if fully set forth at length herein.

48. That the CITY, NYPD, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to MARTINEZ and GALLAGHER, in that said employees, as employees of CITY and NYPD, were not qualified to be hired or retained or promoted as police officers, Detectives and Lieutenants, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by CITY and NYPD.

49. That HYDE, its agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to ZAIN and SCOTT, in that said employees, as employees of HYDE, were not qualified to be hired or retained or promoted as school administrators, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by HYDE.

50. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately test, analyze test results, and/or investigate the above-mentioned police officers' backgrounds and job performance.

51. That HYDE failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that HYDE failed to adequately test, analyze test results, and/or investigate the above-mentioned school administrators' backgrounds and job performance.

52. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violated Patrol Guidelines.

53. That HYDE failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that HYDE failed to adequately screen said school administrators, failed to adequately monitor said school administrators, and failed to adequately discipline said school administrators when they violated HYDE employment guidelines.

54. Defendant CITY and NYPD were also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Detective and/or Lieutenant defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant Detective and/or Lieutenant were not suitable to be hired and employed by the CITY and NYPD and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals.

55. That at all times hereinafter mentioned the actions of HYDE, ZAIN, SCOTT, CITY, NYPD, and MARTINEZ as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

56. That by reason of the foregoing, Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF NAGITY DENG

57. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 to 56 with the same force and effect as if fully set forth at length herein.

58. In arresting Plaintiff, defendants including, but not limited to, ZAIN, SCOTT, GALLAGHER and MARTINEZ, acting in their capacity as agents, servants and employees of HYDE, CITY and NYPD, respectively, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

59. In arresting Plaintiff, defendants including, but not limited to, ZAIN, SCOTT, GALLAGHER and MARTINEZ, acting in their capacity as agents, servants and employees of HYDE, CITY and NYPD, respectively, sought either a detriment to Plaintiff or a collateral advantage to HYDE, the CITY and NYPD that was outside the legitimate ends of effectuating an arrest.

60. As a result of the abuse of process by defendants herein, Plaintiff sustained multiple injuries including but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for her safety.

61. That at all times hereinafter mentioned the actions of HYDE, ZAIN, SCOTT, CITY, NYPD, and MARTINEZ as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

62. That by reason of the foregoing, Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF NAGITY DENG

63. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 to 62 with the same force and effect as if fully set forth at length herein.

64. That on April 10, 2018., within the County of Bronx, City and State of New York, the CITY and NYPD were present through its agents, servants and/or employees including but not limited to GALLAGHER and MARTINEZ, who were acting in the course of their employment and under the color of law to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

65. Multiple arrests for Aggravated Harassment have been made by NYPD officers since 2014 using criteria struck down by the Court of Appeals. This has led to multiple dismissals by District Attorneys and judges throughout the city.

66. Plaintiff 's injuries, including the violation of her constitutional rights, the deprivation of her freedom, falsely and maliciously being prosecuted, physical and emotional injuries, are the direct and proximate result of the CITY's and NYPD'S policies and/or deliberate indifference to practices which involve unconstitutional arrests, false arrest, and deliberate indifference to the need to train, supervise, monitor, investigate and discipline, including suspension, dismissal and/or reassignment of offending police officers. The practice is widespread and pervasive throughout the entire City of New York.

67. The CITY and NYPD knew or should have known of the customs and police practices of its officers which included but was not limited to making arrests for crimes that had been redefined or struck down by the courts.

68. That the acts of employees of the CITY and NYPD, i.e. police officers, who violate the civil and constitutional rights of the citizens of the City of New York routinely go

unreported, undisciplined and their acts condoned by other officers, including their supervisors.

Upon information and belief, the supervisors of defendant police officers herein were aware of the conduct of defendant police officers and failed to stop, report or intervene in the misconduct.

69. In sum, the CITY and NYPD are responsible for creating a custom, policy or practice wherein many officers do not seem to believe that anything is really wrong with arresting innocent citizens for actions that are not illegal.

70. The above customs, polices and/or practices and the deliberate indifference thereto, was a direct and proximate cause of the illegal seizure of Plaintiff, and the false arrest and malicious prosecution of Plaintiff. The CITY and NYPD'S polices, customs and/or practices deprived the Plaintiff of his rights and liberties as set forth in the Constitutions of the United States and the State of New York and under 42 U.S.C §§ 1983, 1986 and 1988.

71. That said actions violated the Fourth and Fourteenth Amendments to the Constitution of the United States, violated Plaintiffs right to be secure in person, and that the defendants denied her due process of law.

72. Moreover, the CITY and NYPD caused or created a policy and/or custom, and acted with deliberate indifference to patterns and/or police practices which included illegal seizures, illegal arrests, failing to properly supervise, train, investigate or discipline officers, and any and/or all of the above have contributed to Plaintiffs false arrest, malicious and false prosecution, and injuries.

73. That the Plaintiff did not commit any illegal act, either before or at the time she was falsely arrested and imprisoned, assaulted, deprived of her constitutional rights as set forth in the Constitution of the United States and 42 U.S.C § 1983.

74. That by reason of the foregoing, Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF NAGITY DENG

75. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 to 74 with the same force and effect as if fully set forth at length herein.

76. At all times mentioned herein and above, defendants CITY and NYPD employed MARTINEZ and GALLAGHER as police officers and named defendants were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

77. Plaintiff was at all times relevant herein a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

78. That on or about April 10, 2018, defendants CITY, NYPD, GALLAGHER and MARTINEZ, without probable cause, reasonable cause or legal justification did physically seize Plaintiff during the arrest process in an unlawful manner. Plaintiff was falsely arrested, unlawfully imprisoned and as a result of defendants' conduct maliciously prosecuted without the defendants possessing probable cause, reasonable cause or legal justification to do so.

79. The above actions of defendants CITY, NYPD, GALLAGHER and MARTINEZ resulted in Plaintiff being deprived of the following rights under the United States Constitution:

- a) Freedom from illegal search and seizure; b) Freedom from false arrest; c) Freedom from malicious prosecution; d) Freedom from the use of excessive force during the arrest process; and
- e) the right to Due Process of Law.

80. In addition to the above, defendants CITY and NYPD have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct its police officers, including the officers

involved in this case and any and all unnamed officers involved in the unlawful seizure and arrest of plaintiff, regarding the protection of the constitutional rights of citizens.

81. Defendants CITY, NYPD, GALLAGHER and MARTINEZ subjected Plaintiff to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff 's rights and with deliberate indifference to those rights under the Fourth, Fifth, Sixth, Fourteenth and all other related Amendments to the United States Constitution.

82. The direct and proximate result of the defendants CITY, NYPD, MARTINEZ and GALLAGHER''s acts are that Plaintiff has suffered severe and permanent injuries, loss of liberty and companionship, has been forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

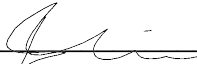
83. That by reason of the foregoing, Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

WHEREFORE, the Plaintiff NAGITY DENG demands judgment against the defendants on the First Cause of Action through the Sixth Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, all together with attorney's fees, punitive damages and the costs and disbursements of this action.

Dated: July 9, 2019
New York, New York

Yours, etc.,

Brill Legal Group, P.C.
Attorneys for Plaintiff



By: PETER E. BRILL, ESQ.
306 Fifth Avenue
Penthouse
New York, NY 10001
(212) 233-4141

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York, hereby affirms as true under penalty of perjury that affiant is a member of the firm of BRILL LEGAL GROUP, P.C., attorneys for Plaintiff in the within action; that affiant has read the foregoing VERIFIED COMPLAINT and knows the contents thereof; that the same is true to affiant's own knowledge, except as to matters therein stated to be alleged on information and belief, and that those matters affiant believes to be true.

This verification is made by affirmant and not the Plaintiff because Plaintiff does not reside in a county where the undersigned maintains an office.

Dated: New York, New York
July 9, 2019



PETER E. BRILL